

26STLC03263 EVERGREEN BANK GROUP v. YANJU MA

County: los-angeles

Division: Civil Law and Motion

Department: 834

Hearing date: 2026-08-25

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Case Number: 26STLC03263 Hearing Date: August 25, 2026 Dept: 834

Superior Court of California

County of Los Angeles

Department 834

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EVERGREEN BANK GROUP,

Plaintiff(s),

vs.

YANJU MA,

Defendant(s).

Case No.:

26STLC03263

Hearing Date:

August 25, 2026

[TENTATIVE]

ORDER RE: APPLICATION FOR WRIT OF POSSESSION

Plaintiff Evergreen Bank Group ("Plaintiff")

seeks a writ of possession against defendant Yanju Ma ("Defendant") to recover a motor vehicle.

The unopposed motion is granted.

I.

Background

Defendant entered into a Promissory Note, Disclosure and Security

Agreement ("Contract") with Plaintiff to finance the purchase of a motor

vehicle. (Urso Decl., ¶ 5, Ex. 1.) Defendant agreed to pay \$485.84 monthly for 84

months beginning July 24, 2025. (Urso Decl., Ex. 1.) Defendant did not make the

July 24, 2025 payment or any other payments after. (Urso Decl., ¶7, Ex. 3.)

On May 13, 2026, Plaintiff filed this

action against Defendant for claim and delivery. On June 22, 2026, Plaintiff

filed the instant application for writ of possession.

II.

Applicable Law

"Upon the filing of the complaint

or at any time thereafter, the plaintiff may apply pursuant to this chapter for

a writ of possession by filing a written application for the writ with the

court in which the action is brought.” (CCP § 512.010(a).)

Pursuant to CCP § 512.010(b), the

application must be submitted under oath and include the following:

(1) A showing of the basis of

the plaintiff's claim and that the plaintiff is entitled to possession of the

property claimed. If the basis of the plaintiff's claim is a written

instrument, a copy of the instrument shall be attached.

(2) A showing that the property

is wrongfully detained by the defendant, of the manner in which the defendant

came into possession of the property, and, according to the best knowledge,

information, and belief of the plaintiff, of the reason for the detention.

(3) A particular description of

the property and a statement of its value.

(4) A statement, according to

the best knowledge, information, and belief of the plaintiff, of the location

of the property and, if the property, or some part of it, is within a private

place which may have to be entered to take possession, a showing that there is

probable cause to believe that such property is located there.

(5) A statement that the

property has not been taken for a tax, assessment, or fine, pursuant to a

statute; or seized under an execution against the property of the plaintiff;

or, if so seized, that it is by statute exempt from such seizure.

Before the hearing on the

application for writ of possession, the defendant must be served with (1) a

copy of the summons and complaint; (2) a Notice of Application and Hearing; and

(3) a copy of the application and any affidavit in support thereof. (Id.

§ 512.030.)

“At the hearing, a writ of

possession shall issue if both of the following are found: [¶] (1) The plaintiff has established the

probable validity of the plaintiff's claim to possession of the property. [¶]

(2) The undertaking requirements of Section 515.010 are satisfied.” (Id.

§ 512.060(a).) “A claim has ‘probable validity’ where it is more likely than

not that the plaintiff will obtain a judgment against the defendant on that

claim.” (Id. § 511.090.)

A writ of possession shall not

issue unless the plaintiff files an undertaking “in an amount not less than

twice the value of the defendant's interest in the property or in a greater

amount.” (Id. § 515.010(a).)

Due to the extraordinary nature

of pretrial statutory writ remedies, their requirements are ordinarily subject

to strict construction. (See Pacific Decision Sciences Corp. v.

Superior Court (2004) 121 Cal.App.4th 1100, 1106.)

III.

Analysis

1.

Notice

According to the proof of service

filed on July 21, 2026, Defendant was served with a copy of the summons,

complaint, and moving papers by substituted service on June 30, 2026.

2.

Description and Value of Property

The subject property is a 2025

YAMAHA WAVERUNNER FX CRUISER SVHO, Vehicle Identification No. US-YAMA1240C525 ("Vehicle").

(Urso Decl., ¶ 5.) The Vehicle is worth about \$16,710 retail. (Urso Decl., ¶ 10,

Ex. 4.)

3.

Statutory Statements

Pursuant to CCP § 512.010(b)(4)

and (b)(5), the application must include:

(4) A statement, according to

the best knowledge, information, and belief of the plaintiff, of the location of the property and, if the property, or some part of it, is within a private place which may have to be entered to take possession, a showing that there is probable cause to believe that such property is located there.

(5) A statement that the

property has not been taken for a tax, assessment, or fine, pursuant to a statute; or seized under an execution against the property of the plaintiff; or, if so seized, that it is by statute exempt from such seizure.

With respect to CCP §

512.010(b)(5), Plaintiff declares that the subject property has not been taken for a tax, assessment, or fine, pursuant to a statute, and has not been seized under an execution against the property of the Plaintiff. (Application ¶ 8(a).)

With respect to CCP §

512.010(b)(4), Plaintiff declares that the Vehicle is located at 312 S 6TH STREET ALHAMBRA, CA 91801. (Application ¶¶ 6-7; Urso Decl. ¶ 14.)

Plaintiff has complied with CCP §

512.010(b)(4) and (b)(5).

4.

Probable Validity

Plaintiff seeks to recover possession

of the Vehicle through its cause of action for claim and delivery. (State

Farm Mut. Auto. Ins. Co. v. Department of Motor Vehicles (1997) 53

Cal.App.4th 1076, 1081 [remedy for conversion includes “specific recovery of

the property”]; *McFaddin v. H.S. Crocker Co.* (1963) 219 Cal.App.2d 585,

590 [claim and delivery is an auxiliary remedy in an action for recovery of

personal property].)

“To obtain possession of tangible

personal property through a writ of possession, the plaintiff must establish,

inter alia, the basis for its claim, that it is entitled to possession of the

property, and the defendant is wrongfully detaining the property.” (SANTA

CLARA VALLEY WATER DISTRICT, Plaintiff and Respondent, v. REBECCA EISENBERG,

Defendant and Appellant. (Cal. Ct. App., Jan. 30, 2026, No. H052913) 2026

WL 1051865, at *5 [citing CCP § 512.010, subd. (b)].) “The court shall issue a

writ of possession after a hearing if the plaintiff establishes the probable

validity of its claim for possession of the property.” (Ibid [citing CCP

§ 512.060, subd. (a)(1)].) The plaintiff establishes “probable validity” by

showing “it is more likely than not that the plaintiff will obtain a judgment

against the defendant on that claim.” (Ibid [citing CCP § 511.090].)

Plaintiff has shown that its

claim against Defendant is probably valid. Plaintiff provides sufficient

documentary evidence that Plaintiff and Defendant entered into the Contract to finance the purchase of the Vehicle. (Urso Decl., ¶ 5, Ex. 1.) Defendant is in default under the terms of the Contract. (Urso Decl., ¶ 7, Exs. 3.) Plaintiff may take possession of the Vehicle. (Urso Decl. ¶¶ 5-8, Exs. 1 at 5, ¶ 12, 2.) The Vehicle's title shows Plaintiff is the lienholder. (Urso Decl., ¶ 6, Ex. 2.)

5.

Undertaking

CCP § 515.010 requires an undertaking to be filed before the writ issues in the amount of "not less than twice the value of the defendant's interest in the property." (CCP § 515.010(a).) "The value of the defendant's interest in the property is determined by the market value of the property less the amount due and owing on any conditional sales contract or security agreement and all liens and encumbrances on the property, and any other factors necessary to determine the defendant's interest in the property." (Ibid.)

Here, the declaration indicates

that the fair market value of the vehicle is about \$16,710. (Urso Decl. ¶ 10, Ex. 4.) As of January 22, 2026, the amount due and owing from Defendant is \$27,117.

(Urso Decl. ¶ 7, Ex. 3.) Defendant has no equity in the Vehicle. The undertaking is waived. The re-delivery bond will be \$16,710. (CCP §

515.020(a).)

IV.

Conclusion

The application for writ of

possession is GRANTED.

Date: August 25, 2026

HON. TIANA J. MURILLO

PLEASE TAKE NOTICE:

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Parties

are encouraged to meet and confer after reading this tentative ruling to see if

they can reach an agreement.

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If

a party intends to submit on this tentative ruling, the party may send an email

to the court at with the Subject line

“SUBMIT” followed by the case number. The body of the email must include the

hearing date and time, counsel’s contact information, and the identity of the

party submitting.

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Unless

all parties submit by email to this tentative ruling, the parties should

arrange to appear remotely (encouraged) or in person for oral argument. You

should assume that others may appear at the hearing to argue.

If the parties neither submit nor

appear at hearing, the court may take the matter off calendar or adopt the

tentative ruling as the order of the court. After the court has issued a

tentative ruling, the court may prohibit the withdrawal of the matter without

leave.